

Sushma Kumari vs Bishan Dass on 11 February, 2020

Author: Chief Justice

Bench: Chief Justice

Sr. No. 11

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU

CTA No. 7/2016
IA(1/2016)

Sushma Kumari

...Applicant/Petitioner(s)

Through :- None.

V/s

Bishan Dass

..Respondent(s)

Through :- None.

Coram: HON'BLE THE CHIEF JUSTICE

ORDER

01. By this application, the applicant has sought transfer of case file No. 31/HM titled ' Bishan Dass v. Sushma Kumari' filed by the respondent under section 9 of the Hindu Marriage Act, 1980, pending before the court of learned District Judge Kathua to the Additional District Judge (Matrimonial Cases) Jammu.

02. This petition was filed in the year 2016 and has remained pending in this Court.

03. Notice was issued to the respondent on 3rd March 2016. However, the respondent has not appeared in the matter.

04. The applicant has remained unrepresented on 10th August 2018, 5th November 2019 and 18th November 2019.

05. A report regarding status of the file No. 31/HM titled ' Bishan Dass v. Sushma Kumari' has been received from the office of the Principal District & Sessions Judge, Kathua, reporting as follows:

"

S.No. Type/No./year Title Detail of the petition to be transferred (1) (2) (3) (4)

1. CTA No. 07/16 Sushma Kumari The above titled case was disposed vs. of vide order dated 27.09.2016 in Bishan Dass which the petition is allowed and exparte decree of restitution of conjugal rights directing the respondent to resume the matrimonial life with the petitioner.

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06. In view of the above, this transfer petition has been rendered infructuous and is disposed of as such.

07. Inasmuch as the applicant is not represented, let a copy of this order be sent to the applicant at the address disclosed on the petition under Section 9 of the Hindu Marriage Act, 1980 (page 12) as well as on this petition.

(GITA MITTAL) CHIEF JUSTICE Jammu 11.02.2020 Sunita